

03. 11.05.2020 Heard Mr. M.R. Padhi, learned counsel for the petitioner and Mr. B. Satpathy, learned Standing Counsel for School & Mass Education Department.

The petitioner has filed this writ petition seeking direction to the opposite parties to regularize the past services rendered by the petitioner from 16.08.2001 to 31.03.2008 as qualifying service keeping in view the judgment of the apex Court in **Secretary State of Karnataka and Others v. Umadevi (3) and Others** (2006) 4 SCC 1, and to bring the petitioner under old pension scheme as per Finance Department notification No.Pen-23/2001-45865/F dated 01.09.2001 and 17114(255)/F PEN-7/07 dated 04.04.2007 as well as Rule-18 Sub-Rule-(6) of the Orissa Civil Service (Pension) Rules, 1992.

In course of hearing, learned counsel appearing for the petitioner states that highlighting the grievance the petitioner has made representation to opposite party no.1 vide Annexure-6 and direction be given to consider the same within a stipulated time.

In view of the aforesaid limited grievance of the petitioner, this Court, without expressing any opinion on the merits of the case, disposes of the writ petition directing opposite party no.1 to take a decision on the representation filed by the petitioner under Annexure-6 and pass appropriate order in accordance with law within a period of three months from the date of production of certified/authenticated copy of this order.

Alok

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(DR. B.R. SARANGI)
JUDGE

